# Key: The Door That Revolves, On the Record

84-355 Democracy's Data | Lobbying | Instructor copy — do not distribute

Jonathan Cervas

August 11, 2026

All code is given to students. Grade the interpretation.

**Structure, as of the rebuild.** The brief (`lobbying-brief.Rmd`) is now a chapter rather than a parallel copy of the lab: prose organised by argument, under idea headings, with three numbered figures and no numbered steps. The lab (`lobbying.Rmd`) still runs Steps 1-10 with the code exposed. **Students should read the brief first. Step numbers below refer to the lab**; the chapter is cited by figure number or section title.

**Pairs with the campaign-finance labs.** Those are money spent to decide who wins; this is money spent on what happens next, and it is larger. Teaching them in the same week makes the contrast do the work.

Every number below was run against the data files.

---

## The session in one sentence

Congress passed a law requiring lobbyists to disclose that they used to work for Congress, more than a quarter of them do, and the field recording it is more precise than the field recording the money.

---

## The findings

```
c(filings = nrow(f), lobbyists = nrow(lo),
  with_former_gov_job = sum(lo$has),
  pct = round(100 * mean(lo$has), 1),
  median_filing = median(f$amount[f$amount > 0]))
```

```
#>              filings           lobbyists with_former_gov_job                 pct
#>               1500.0               773.0               216.0                27.9
#>        median_filing
#>              30000.0
```

- **216 of 773 lobbyists (27.9%)** disclose a previous government position.
- Median filing reports **$30,000** for the quarter.

- Top issue: **Budget/Appropriations**. Most-lobbied: **the House and Senate**, then HHS and the White House.
- The sample is **1,500 of 19,016** Q2 2024 filings — see below.

---

## The three things to get said

**1. The revolving door is not an exposé here — it is a form field.** Students expect this kind of fact to come from investigative journalism. It comes from `covered_position`, a box on a federal disclosure form, because the **Lobbying Disclosure Act of 1995** requires it. **Read three or four of the entries aloud.** "U.S. Representative Nancy Pelosi (D-CA)" lands harder than any percentage.

**2. Then ask what disclosure accomplishes.** Requiring somebody to announce a conflict is not the same as preventing it. Congress chose the weaker of the two tools, and the data exists precisely *because* it chose the weaker one. **That is worth five minutes and has no clean answer.**

**3. Compare the precision of the two fields.** `covered_position` is specific enough to name a member of Congress. The money is a single number per filing, undivided across issues, with no meetings, dates or people named. **Both were written by the same Congress in the same statute.** Ask which lobbyists would have objected to which.

**The line for the board:** everything here is public because somebody decided disclosure was enough.

---

## The sampling problem — teach it, do not hide it

**We have 1,500 of 19,016 filings from one quarter.** The Senate's API rate-limits anonymous users to 25 records a request and returns 429 if pushed.

This is not a footnote; **it is the third instance of the course's running theme** — the census API needing a key, VEST behind a guestbook, and now a public database that hands out its contents 25 rows at a time. Say the pattern out loud: **"public" and "usable" are different properties.**

And be strict about what survives it. Rates (the 27.9%) are fine. Rankings (Budget/Appropriations first) are probably fine. **Totals are meaningless** and students should not quote the $45 million.

---

---

## Walking the steps

| Steps | What they do | Min | Watch for |
|---|---|---|---|
| **1-3** | One filing; the 7.9% sample; the money column and its zeros | 10 | **Public is not usable.** The rate limit is a finding, not an excuse. |

| Steps | What they do | Min | Watch for |
|---|---|---|---|
| **4-6** | The number that does not exist; issues; entities | 12 | **The pivot.** One dollar figure, 17 issue areas, no division. |
| **7-8** | The covered-position field, then reading the entries | 12 | Precise enough to name a senator — and loose enough to contain 'President and CEO'. |
| **9** | The asymmetry | 6 | Same statute, same Congress: one field too specific to aggregate, one too coarse to attribute. |
| **10** | What you can say | 5 | The finding is about the regime, not the lobbyists. |

**Figure 2 of the chapter is the form itself**, under *The question that cannot be asked.* It is one filed LD-2 — Barker Leavitt, PLLC for Millcreek, Utah, Q2 2024, which is a row of `filings.csv`, not an illustration of one — with four boxes marked on it: the single income figure (line 12), the two general issue area codes on separate pages (line 15), the institutions contacted (line 17), and the covered-position field (line 18). Put it on the screen before arguing about the data, because every complaint the lab raises in its Steps 4 to 9 is a property of that piece of paper. Two details worth pointing at: the same lobbyist is listed twice under two different descriptions of his own career, and on the second page his surname is misspelt. Nothing on the form is validated. The fetch, the redaction of the filer's telephone number and e-mail, and the annotations are in `data/fetch-form-image.R`.

**The form and the asymmetry are the pair that matters** — Figure 2 and *The same statute, in two failing directions* in the chapter, Steps 4 and 9 in the lab. Ask the class how much was spent lobbying on health care. Let them look for it. The answer is that the form does not ask.

**If you are short on time**, protect the pivot and the closing step. The numbers are what make the argument concrete; the sequence is the argument.

## Option A — Firms versus causes

### Verified output

```r
r <- sort(table(f$registrant), decreasing = TRUE)
head(data.frame(registrant = names(r), filings = as.vector(r)), 8)
```

```
#>                                                   registrant filings
#> 1                                        HOLLAND & KNIGHT LLP     143
#> 2                                  CASSIDY & ASSOCIATES, INC.      57
#> 3                                            THE VOGEL GROUP      56
#> 4                                   DOWNS GOVERNMENT AFFAIRS      46
#> 5                                             DENTONS US LLP      41
#> 6                                HEALTH AND MEDICINE COUNSEL      38
#> 7 MCGUIREWOODS CONSULTING (A SUBSIDIARY OF MCGUIREWOODS LLP)      38
#> 8                                       PENN AVENUE PARTNERS      33
```

```r
c(unique_registrants = length(unique(f$registrant)),
  unique_clients     = length(unique(f$client)))
```

```
#> unique_registrants     unique_clients
#>                416               1464
```

**3/4:** Reports the most frequent registrants and notices a few firms file many times.

**4/4:** Reads the client lists and sees that a single firm represents clients with nothing in common — a dispatch centre, a university, a trade association. **That is not subject-matter expertise. It is access being rented**, and the lobbyist's asset is the relationship, not the policy knowledge.

**4/4, best:** Connects it to *A field precise enough to name a senator* — if the asset is access, the covered-position field is a **price list**, and a firm's value is partly the sum of its employees' former employers. A student who says the disclosure form inadvertently documents the business model has it.

---

# Option B — Search the door

## Verified output

```r
p <- lo$former_government_position[lo$has]
c(mentions_Senator        = sum(grepl("Senator", p, ignore.case = TRUE)),
  mentions_Representative = sum(grepl("Representative|Congressman|Congresswoman",
                                      p, ignore.case = TRUE)),
  mentions_Chief_of_Staff = sum(grepl("Chief of Staff", p, ignore.case = TRUE)),
  mentions_Counsel        = sum(grepl("Counsel", p, ignore.case = TRUE)),
  total_with_position     = length(p))
```

```
#>        mentions_Senator mentions_Representative mentions_Chief_of_Staff
#>                      22                      39                      37
#>        mentions_Counsel     total_with_position
#>                      13                     216
```

**3/4:** Counts the categories and reports which is commonest.

**4/4:** Notices that **staff roles vastly outnumber members**. Former members are the famous case; the volume is chiefs of staff, legislative directors and committee counsel — the people who actually wrote the bills. A student who says the door revolves mostly at staff level has corrected a popular misconception.

**4/4, best:** Notices the field is **free text with no controlled vocabulary** — "U.S. Representative Nancy Pelosi (D-CA)" and "former Legislative Director for Congressman Mike Turner (R-OH)" are formatted completely differently — so any count is a guess about strings. **The law requires disclosure and does not require it to be machine-readable**, which is a very old trick.

---

## Option C — What the sample costs you

No verified output; grade the reasoning.

**3/4:** Says rates are safer than totals.

**4/4:** Distinguishes three things — **rates** (fine, if the sample is not selected on the outcome), **rankings** (usually fine, since it takes a big error to reorder the top of a skewed distribution), and **totals** (hopeless, off by roughly 13×). Then notes the sample is not random: it is whatever the API returned first, which is likely near-chronological.

**4/4, best:** Identifies the specific danger — **the largest filings are rare**, so an 8% sample of a heavily skewed distribution will usually miss them entirely. Any statement about "the biggest lobbying spenders" from this file is unsupported no matter how carefully hedged. **Knowing which claims are unavailable is the skill.**

---

## Grading

Four-point scale from the syllabus.

- **Never penalise code.** It is your code.
- **The move that earns a 4** is treating disclosure as a policy choice with consequences rather than as a neutral source of data.
- **A 2** is "lobbying is corrupt," which the data does not show and was not the question.
- **Also a 2**: quoting a total from an 8% sample.
- **Reward anyone who notices the free-text field** and what it implies.

### Anticipated questions

- *"Is any of this illegal?"* — No. Everything here is legal, disclosed, and filed on time. That is what makes it interesting.
- *"Who checks the filings?"* — The Secretary of the Senate and Clerk of the House refer non-compliance to the U.S. Attorney; enforcement is rare. Compare the FEC's independent-expenditure junk filings, where nobody checked either.
- *"What about people who don't register?"* — The definition requires multiple contacts and a share of working time. **Strategic advisers who never contact an official file nothing**, and that is the largest hole in the regime.
- *"Can I look up a specific person?"* — Yes, the database is searchable at lda.senate.gov. Students find this genuinely startling.

### Connections

- **Campaign finance** — the same money, before the election instead of after.
- **Independent expenditures** — the other disclosure regime, and the other place where the government publishes what was filed without checking it.
- **EAVS** — self-reporting by the people being measured.
- **The Census API and VEST** — the recurring gap between public and usable.